

SS SCS HB 2593 -- MILITARY AFFAIRS

BENEFITS FOR MEMBERS OF THE MISSOURI NATIONAL GUARD (Section 40.490, 41.430, 41.1030, and 105.210)

This bill extends Federal protections of the Servicemembers Civil Relief Act (SCRA) currently in Federal law for Federal servicemembers to members of the Missouri National Guard who are called to active state duty by the Governor or adjutant general for a period of more than 30 consecutive days and any Missouri employees who are members of the National Guard of another state and are called to active state duty by the Governor or adjutant general of that state for a period of more than 30 consecutive days, upon being relieved of such duty.

The bill allows members of the Missouri National Guard or any Missouri employee who is a member of the National Guard of another state who believes his or her rights have been violated to bring suit in any court of competent jurisdiction and appropriate venue. The office of the Attorney General can also bring suit against an employer who violates the provisions of this bill.

This bill establishes "The Supporting Missouri Servicemen and Women Act". Currently, members of the Missouri National Guard serving under state active duty orders receive the same pay, longevity, and allowances as members of like grade and branch of the Armed Forces of the United States, provided that such members at least receive the daily paygrade rate of an E5 with maximum longevity and dependents. This bill additionally provides that members of the Missouri National Guard who are on state active duty orders for more than 30 days will receive an allowance for any premiums for TRICARE or other government-sponsored insurance programs for coverage of the member during the period of active duty.

This bill establishes a new program called the "Missouri Guaranteed Inclusive Voluntary Exceptional Service Program" or (MO GIVES). The Program provides state active duty orders to Guard members who are living organ donors. The living donation period includes all medically necessary phases including, but not limited to, testing, surgery, and recovery. The active duty orders will not exceed 45 days, unless a medical extension is deemed necessary by the primary surgical team. The member will continue to be paid while he or she is on the active duty order. To qualify for the Program, a member must:

- (1) Be a Missouri National Guard member in good standing;
- (2) Be in traditional drilling status;
- (3) Be actively participating in a living organ donation process; and
- (4) Not be on Federal active duty orders under Title 10 or Title 32.

Active Guard Reserve (AGR) personnel serving on full-time Federal orders, Federal technicians under Title 5 or Title 32 and any Federal employee whose participation would violate Federal dual compensation laws do not qualify for the program. The bill creates the "MO GIVES Fund" for the administration of the Program.

This bill expands, from 120 to 160, the maximum number of hours in leave of absence per federal fiscal year that certain public employees are entitled to take to perform specified military duties without loss of time, pay, regular leave, impairment of efficiency rating, or of any other rights or benefits to which the employees are otherwise entitled.

FINANCIAL ASSISTANCE FOR MEMBERS OF THE MISSOURI NATIONAL GUARD (Section 41.216 and 173.239)

This bill modifies the composition of the panel that recommends to the Adjutant General to make grants or provide other financial assistance or services from the Missouri Military Family Relief Fund. This bill replaces a sergeant major of the Missouri National Guard with a senior enlisted leader of the Missouri National Guard. The bill also provides that the Adjutant General, rather than the panel, will have the power to establish criteria for the grants. Furthermore, the grants may be made to members of the Missouri National Guard in addition to families of members and other reserve members of the Armed Forces of the United States.

Currently, the tuition and fee waiver for undergraduate courses at Missouri higher education institutions to Missouri National Guard members apply after GI Bill educational entitlements. This bill repeals this provision. The bill specifies that for each semester, the tuition and fee waiver awarded by an institution to a member cannot exceed the amount of the grant received by the institution for that member.

RIBBONS, MEDALLIONS, MEDALS, AND CERTIFICATES (Sections 41.475, 41.598, 41.599, 42.300, 42.310, 42.312, 42.313, 42.315, and 42.316)

This bill establishes a Missouri National Guard Counterdrug Program Ribbon, which the Adjutant General is authorized to present to any member of the Missouri National Guard who has participated in the Counterdrug Program from January 1, 1989.

The bill also establishes the Missouri National Guard Homeland Response Force Program Ribbon, which the Adjutant General is authorized to present to any member of the Missouri National Guard who has participated in the Homeland Response Force Program from January 1, 2012.

This bill establishes a Missouri National Guard Engineer Explosive Ordnance Clearance Agent Ribbon, which the Adjutant General is authorized to present to any member of the Missouri National Guard who has participated in a engineer explosive ordnance clearance agent course from January 1, 2012.

The Missouri Veterans' Commission may use the Veterans Commission Capital Improvement Trust Fund for payment of expenses associated with providing medals, medallions, and certificates in recognition of service in the Armed Forces of the United States for any conflict, war, operation, and similar incident identified in law, rather than during World War II, the Korean Conflict, and the Vietnam War.

This bill creates the following medallions, medals, and certificates for eligible veterans:

- (1) Operation Iraqi Freedom and Operation New Dawn;
- (2) Operation Enduring Freedom, Operation Freedom's Sentinel, and Operation Allies Refuge Program; and
- (3) Operation Desert Shield and Operation Desert Storm.

The bill provides that spouses or eldest living survivors of a deceased veteran, who was entitled to but died prior to applying, may apply on behalf of the deceased veteran.

The Missouri Veterans' Commission will design the form for the medallions, medals, and certificates. The Adjutant General will

determine as expeditiously as possible those persons who are entitled to medallions, medals, and certificates and will notify the General Assembly when the supply totals less than 100.

ASSET FORFEITURE (Section 41.477)

This bill creates the "Missouri National Guard Counterdrug Revolving Fund", which will consist of all monies received by the Missouri National Guard through federal asset forfeiture programs for purposes authorized by such programs.

Participation in federal asset forfeiture programs will be at the discretion of the Adjutant General. Upon electing to participate, the Missouri National Guard must comply with the terms of an equitable sharing agreement and certificate of the federal asset forfeiture program.

CYBERSECURITY (Sections 41.1015 - 41.1018)

The bill establishes the "Cybersecurity Mission Act", which authorizes the Missouri National Guard to engage in cybersecurity, cyber-attack prevention, cyber-attack response, and cyber-attack support activities for this state and for political subdivisions, governing bodies, public colleges and universities, law enforcement agencies, utility companies, and critical infrastructure facilities of this state. The Adjutant General may activate members on state order to carry out such activities. The bill creates the "Missouri National Guard Cyber-Security Revolving Fund" which consists of monies appropriated by the General Assembly, monies received as a charge and monies received as reimbursement for expenses incurred by the Missouri National Guard related to rendering aid.

VETERAN OWNED BUSINESSES (Sections 34.069 and 34.074)

This bill requires all agencies, departments, institutions and other entities of this State and of each political subdivision to give a three-point bonus preference to honorably discharged veteran owned enterprises that conduct business in Missouri, or that maintain offices or places of business in Missouri, for contracts for the performance of any job or service.

Currently, there is a three-point bonus preference for being a service-disabled veteran business. This bill specifies that a business cannot receive points for being a service-disabled

veteran and for being an honorably discharged veteran owned enterprise. The business can only be awarded points for one qualifier or the other.

STATE-SPONSORED LIFE INSURANCE PROGRAM (Section 105.265)

This bill provides that the Adjutant General will be the official sponsor of the state-sponsored life insurance program, which is the life insurance program exclusively offered to all members of the Missouri National Guard through the Missouri National Guard Association in accordance with Federal law. The Missouri National Guard Association will select the insurer used to provide the program.

Furthermore, the Adjutant General must:

- (1) Allow, facilitate, and coordinate all efforts to make the program available to all Missouri National Guard members;
- (2) Provide an opportunity for Missouri National Guard members to purchase products of the program;
- (3) Allow, facilitate, and coordinate requested allotments with the appropriate United States Property and Fiscal Office;
- (4) Allow program representatives to provide Missouri National Guard members with program briefings during annual training and inactive duty training periods; and
- (5) Allow Missouri National Guard members to designate or change beneficiaries under the program.

THE MILITARY COUNCIL (Section 41.220)

This bill repeals the Military Council, the duties of which included acting in an advisory capacity on matters provided by the Governor and the Adjutant General and making recommendations of appropriations for the needs of the militia and expending such appropriations.